

Ranjana Gopalrao Thorat vs State Of Maharashtra on 22 June, 2007

Equivalent citations: 2007CRILJ3866, I(2008)DMC279, 2007(5)MHLJ425

Author: C.L. Pangarkar

Bench: C.L. Pangarkar

JUDGMENT

C.L. Pangarkar, J.

1. Rule, heard finally with consent of parties.
2. The revision is filed by accused Smt. Ranjana Thorat, since her application for discharge was rejected by Sessions Judge, Akola.
3. A few facts as can be gathered from F.I.R. may be stated thus.

One Padma was married to accused Baburao Charhate. She has two issues born out of wed-lock. She was being ill-treated by the husband Baburao and his relatives, named in the F.I.R. She had, therefore, lodged a report at Police Station, Hiwarkhed against them. Due to intervention of relatives and for her children she agreed to resume cohabitation with her husband Baburao. In the meanwhile, accused Baburao - the husband - developed physical relationship with the present applicant Ranjana and Baburao went to live with her at Malpura. Ranjana too has two children born from Baburao. Padma, the first wife, was initially kept at Godhi but later she also shifted to Malpura and was living with Baburao, his relatives and Ranjana, the present applicant. It is alleged that she was ill-treated and as a result of which she committed suicide. Her brother lodged report with the police.

4. The Magistrate committed the case to the Court of Sessions. The present applicant moved an application for discharge. It was rejected. Hence this revision.
5. I have heard the learned Counsel for the applicant and learned Additional Public Prosecutor for the State.
6. It was contended by Shri Mardikar, the learned Counsel for the applicant, that it is not disputed that deceased Padma was the first wife of accused Baburao. He submitted that the present applicant is a keep of Baburao and even assuming that Baburao had married the present applicant, during subsistence of first marriage with Padma his marriage with applicant is no marriage in the eye of

law. The parties are admittedly Hindus. Section 17 of the Hindu Marriage Act reads thus

17. Punishment of bigamy Any marriage between two Hindus solemnized after the commencement of this Act is void if at the date of such marriage either party had a husband or wife living; and the provisions of Section 494 and 495 of the Indian Penal Code shall apply accordingly.

It is thus clear that if at all there is any marriage between Baburao and the present applicant, it is void. If it is void, it is non est. In any case, therefore, second wife cannot assume a character as wife. It is no marriage in the eye of law. A person can become a relative only by blood or marriage and not otherwise. The word relative has been defined in the Chambers Dictionary "person who is related by blood or marriage." The applicant cannot, therefore, be said to be related to Baburao either by blood or by marriage. Since she is not a relative, she does not fall within the scope of Section 498-A of Indian Penal Code at all. She certainly deserves to be discharged as far as offence under Section 498-A of Indian Penal Code is concerned. She is accordingly discharged as regards offence under Section 498-A of the Indian Penal Code. As far as offence under Section 306 of Indian Penal Code is concerned, that need not be considered at this stage since Mr. Mardikar, the learned Counsel, does not desire to press that aspect here.